

PARTNER & MARKETER AGREEMENT

This Partner & Referral Agreement (the “Agreement”) is entered into as of this ____ day of _____, 20____ (the “Effective Date”), by and between:

Midas Management Concepts, a company organised and existing under the laws of Malawi, having its principal offices at Airwings, Area 58. Lilongwe, Malawi (the “Company”); and Full Name / Organisation Name of Marketer], [an individual / a company organized -----

-----and existing under the laws of -----
(indicate Country/jurisdiction), having its address at

The Company and the Marketer shall be collectively referred to herein as the “Parties” and each of them as a “Party”.

WHEREAS the Company owns and operates the ICIMS church management platform at churchcentral.church and provides subscription-based church administration and management software and related services (the “ICIMS Services”); and

WHEREAS the Company has established a Partner & Referral Management programme and has approved the Marketer, following the registration and verification process set out in that programme, to introduce Prospective Customers interested in subscribing to the ICIMS Services; and

WHEREAS the Marketer has the commercial knowledge, experience and connections to promote the ICIMS Services to Prospective Customers; and

WHEREAS the Marketer has the ability to connect Prospective Customers with the Company for the purpose of subscribing to the ICIMS Services;

NOW, THEREFORE, in consideration of the mutual promises, covenants, conditions, representations and warranties set forth herein, the Parties agree as follows:

1. INTERPRETATION AND DEFINITIONS

Unless the context otherwise requires, capitalised terms used in this Agreement shall have the meanings given below or as otherwise specified herein:

1. “Approved Customer” means a Prospective Customer that has entered into a paid subscription agreement with the Company for the ICIMS Services.

2. "Prospective Customer" means any church, organisation or individual that the Marketer has registered with the Company through the Partner & Referral Management module of the Marketer's approved account, and which the Company had not already recorded as a customer, or as another Marketer's prospect, at the date of registration.
3. "Business Days" means any day excluding a Saturday, Sunday or public holiday within Malawi.
4. "Subscription Fees" means the recurring subscription fees actually received by the Company from an Approved Customer for the ICIMS Services, excluding transaction charges, setup or onboarding fees, SMS/WhatsApp charges, payment-processing or gateway fees, custom development, consultancy and training fees, and any other non-subscription charges.
5. "Commission" means the amount payable to the Marketer under Section 4, calculated as Subscription Fees multiplied by the Commission Rate.
6. "Commission Rate" means the percentage rate set out in Schedule A, or such other rate as the Company may notify the Marketer of in writing from time to time, applied prospectively only.
7. "Commission Eligibility Period" means the four (4) running calendar months following the date on which a Prospective Customer becomes an Approved Customer, as further described in Section 4.
8. "Partner Portal" means the Marketer-facing dashboard of the Partner & Referral Management module through which prospects are registered, commission is tracked, and withdrawals are requested.

2. ENGAGEMENT

The Company hereby engages the Marketer, and the Marketer hereby agrees to serve, as an approved partner of the Company for the purpose of introducing Prospective Customers to the ICIMS Services, all in accordance with the terms herein and the rules of the Partner & Referral Management programme as published in the Partner Portal from time to time.

3. WARRANTIES, UNDERTAKINGS AND REPRESENTATIONS OF THE MARKETER

9. The Marketer warrants that there is no legal, commercial, contractual or other restriction which precludes or might preclude it from entering into this Agreement.
10. The Marketer warrants that neither it, nor anyone acting on its behalf, has ever been convicted of, or pleaded guilty to, any crime or offence involving fraud, corruption or moral turpitude.
11. The Marketer shall not take any action which would, in any way, bring into disrepute the name of the Company, ICIMS, or the reputation of its services.
12. The Marketer shall not register itself, a close family member, or any Prospective Customer using the Marketer's own contact details, as a Prospective Customer (no self-referral).
13. The Marketer represents that the consideration expressed in this Agreement is the entire consideration it is entitled to receive for the referral services described herein, and no further

consideration, compensation, payment, reimbursement or remuneration of any kind is or shall be due to it in respect of the same.

14. The Marketer acknowledges that the Company is under no obligation to enter into any subscription agreement with, or otherwise accept, any Prospective Customer introduced by the Marketer, such matters being in the sole and absolute discretion of the Company.

4. COMMISSION

In consideration for the referral services rendered by the Marketer, the Company agrees that the Marketer shall be entitled to a success-based commission calculated in accordance with this Section (the "Commission"):

15. Calculation. Commission = Subscription Fees actually received by the Company from an Approved Customer × the Commission Rate set out in Schedule A. Commission is calculated automatically by the Company's billing system at the transaction level and is never calculated by the Marketer.
16. Non-commissionable revenue. No Commission is payable on setup or onboarding fees, SMS/WhatsApp charges, payment transaction or gateway fees, custom development, consultancy, training, or any other non-subscription charge, whether or not billed alongside a Subscription Fee.
17. Commission Eligibility Period – four (4) months. Commission is payable on an Approved Customer's Subscription Fees only during the Commission Eligibility Period, being the four (4) running calendar months immediately following the date that Approved Customer first subscribes. The Commission Eligibility Period runs continuously from that date regardless of whether the Approved Customer pays in any given month; a month in which the Approved Customer does not pay still counts as one of the four months and generates no Commission, but does not pause or extend the Commission Eligibility Period. No Commission is payable in respect of any period after the fourth month, and the referral automatically becomes ineligible for further Commission at that point, irrespective of whether the Approved Customer's subscription continues.
18. Annual or multi-month billing. Where an Approved Customer is billed annually or for another multi-month period, the fee is apportioned pro-rata across the months it covers, and only the portion falling within the Commission Eligibility Period is commissionable.
19. Refunds and chargebacks. If a Subscription Fee on which Commission was paid is later refunded, reversed or charged back, the corresponding Commission is reversed: if not yet withdrawn, it is cancelled; if already withdrawn, it is deducted from the Marketer's next available Commission balance.
20. No further compensation. Other than the Commission payable in accordance with this Section 4, the Marketer shall not be entitled to any further compensation, payment, remuneration or reimbursement of any kind in respect of this Agreement or the referral services provided by the Marketer.

5. INVOICING, STATEMENTS AND PAYMENT

21. The Company shall make available to the Marketer, via the Partner Portal, a monthly statement showing Prospective Customers registered, Approved Customers converted, Commission earned, and the remaining Commission Eligibility Period for each referral (the “Commission Statement”).
22. The Marketer may, at any time via the Partner Portal, request withdrawal of any available Commission balance, subject to a minimum withdrawal amount as set out in Schedule A. The Company shall not process a withdrawal request exceeding the Marketer’s available balance.
23. The Company shall review each withdrawal request and, if approved, shall pay the approved amount to the Marketer’s registered payment account within the timeframes set out in Schedule A, and shall issue a Commission Payment Receipt confirming the amount paid.
24. The Marketer shall be solely liable for any tax, charge or levy imposed on any sum received under this Agreement. Amounts payable to the Marketer are inclusive of any such tax, and the Company shall be entitled, and where required by the shall be obliged, to withhold and deduct applicable taxes from any payment due to the Marketer, with such withheld amounts treated as paid to the Marketer for the purposes of this Agreement.
25. Any and all expenses incurred by the Marketer in the course of providing referral services, including travel and other out-of-pocket expenses, shall be borne solely by the Marketer.

4. CONFIDENTIALITY AND DATA PROTECTION

26. The Marketer acknowledges that in the course of this Agreement it may receive or be exposed to Confidential Information of the Company, being all non-public information relating to the Company’s business, ICIMS platform, pricing, customers, prospects, and operations, however communicated and whether or not marked confidential.
27. The Marketer undertakes to keep all Confidential Information strictly confidential, not to disclose it to any third party, and not to use it for any purpose other than performing its obligations under this Agreement.
28. The Marketer shall handle any personal data of Prospective Customers and Approved Customers strictly in accordance with the Company’s data protection policy and applicable Malawian law, and shall access only such customer information as is reasonably necessary to verify its own Commission.
29. The Marketer acknowledges that damages would not be an adequate remedy for breach of this Section, and that the Company is entitled to injunctive relief and specific performance in addition to any other available remedy.
30. This Section 4 shall survive the termination or expiration of this Agreement without limitation in time.

7. INDEPENDENT CONTRACTOR

31. The Marketer is at all times an independent contractor. Neither the Marketer nor any of its personnel shall be deemed an employee of the Company.
32. Nothing in this Agreement creates, or shall be deemed to create, a partnership, joint venture, agency or similar relationship between the Marketer and the Company.

8. CONFLICT OF INTEREST

33. The Marketer shall not engage in any activity giving rise to a conflict of interest with the Company's business, and shall promptly disclose to the Company any actual or potential conflict of interest of which it becomes aware.
34. During the Term, the Marketer shall not promote, on behalf of any competitor of the Company, any product or service that competes with the ICIMS Services.

9. COMPANY PROPERTY; INTELLECTUAL PROPERTY

35. All marketing materials, brand assets, referral links and other IP Rights provided by the Company to the Marketer remain the Company's absolute property, shall be used only for the fulfilment of the Marketer's obligations under this Agreement, and shall be returned or removed from use at the Company's request.
36. "IP Rights" means all developments, improvements, trade secrets, designs, know-how and other intellectual property rights that are or have been created, in whole or in part, by the Company.

10. TERM AND TERMINATION

37. This Agreement commences on the Effective Date and continues for twelve (12) months (the "Term"), automatically renewing for further twelve (12) month periods unless either Party gives the other 30 days' prior written notice of non-renewal.
38. Either Party may terminate this Agreement for any reason on 90 days' prior written notice to the other Party.
39. Either Party may terminate this Agreement on 10 Business Days' written notice if the other Party is in material breach of this Agreement and such breach is not remedied within 10 days of notice, or becomes insolvent, is wound up, or has a receiver, liquidator or administrator appointed over its assets.
40. Termination of this Agreement does not affect Commission already earned, nor does it end an Approved Customer's Commission Eligibility Period already in progress at the date of termination; the Marketer remains entitled to Commission for the remainder of that period, provided that where termination is for the Marketer's fraud, breach of confidentiality, or other material breach, the Company may suspend future eligibility while unpaid but already-accrued Commission remains payable.

11. GOVERNING LAW; DISPUTE RESOLUTION

41. This Agreement is governed, construed and interpreted solely in accordance with the laws of Malawi, without giving effect to its conflict-of-law principles.
42. The Parties irrevocably submit to the exclusive jurisdiction of the courts of Malawi in respect of any dispute arising out of or in connection with this Agreement, whether during the Term or following its termination.

12. COMPLIANCE WITH LAW

The Marketer shall act (and shall cause all persons acting on its behalf to act) in compliance with all applicable laws and regulations in performing the services under this Agreement, including applicable anti-corruption, anti-bribery, and data protection laws, and shall use only lawful means when gathering information and performing activities in connection with the referral services.

13. MISCELLANEOUS

43. The Marketer may not assign this Agreement without the Company's prior written consent.
44. This Agreement, together with Schedule A and any other schedules attached hereto, is the complete and entire agreement between the Parties regarding its subject matter and supersedes all prior agreements or understandings between them.
45. No modification or waiver of this Agreement shall bind either Party unless in writing and signed by an authorised representative of each Party.
46. If any provision of this Agreement is or becomes illegal or unenforceable, the remaining provisions shall remain in full force and effect, and the Parties shall replace the affected provision with a legal and enforceable provision reflecting, to the greatest extent possible, their original intention.
47. Failure by either Party to enforce any right or remedy under this Agreement shall not be construed as a waiver of that or any other right or remedy.
48. Any notice under this Agreement shall be in writing and delivered by hand, e-mail (with confirmation of transmission), or recorded delivery to the addresses set out below, or such other address as a Party may notify in accordance with this Section.
49. This Agreement may be executed in counterparts, including electronically, each of which shall be deemed an original and all of which together shall constitute one agreement.
50. Any provision which by its nature is intended to survive termination or expiration of this Agreement shall so survive.
51. The Parties do not intend any term of this Agreement to be enforceable by any person who is not a party to it.

SCHEDULE A – COMMISSION TERMS

Standard Commission Rate	20% of Subscription Fees actually received (subject to Section 4)
Commission Eligibility Period	4 running calendar months per Approved Customer (Section 4.3)
Minimum Withdrawal Amount	MWK 10,000
Withdrawal Review SLA	Reviewed within 3 Business Days of request
Payment SLA	Paid within 5 Business Days of approval
Commission Currency	Malawi Kwacha (MWK)

The Company may vary the Standard Commission Rate, minimum withdrawal amount, or SLAs by written notice to the Marketer via the Partner Portal; any variation applies prospectively only and does not alter the rate already stamped on a completed transaction.

IN WITNESS WHEREOF, the undersigned have executed this Partner & Referral Agreement effective as of the date first above written.

Midas Management Concepts	Marketer
By: Paulaw Kitheka	By: _____
Name: 	Name: _____
Title: Director	Title: _____